

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 09/04/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless, by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

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ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
*HEARING ON MOTION IN RE: STRIKE PLTFs 2ND AMENDED COMPLAINT
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

The hearing on this motion is continued to September 11, 2026 at 9:00 a.m.

2. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
HEARING ON DEMURRER TO: PLTFs 2ND AMENDED COMPLAINT
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

The hearing on this motion is continued to September 11, 2026 at 9:00 a.m.

3. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
*HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S 2ND AMENDED COMPLAINT
FILED BY: AMIRDELFAM, KASRA, MD
TENTATIVE RULING:

The hearing on this motion is continued to September 11, 2026 at 9:00 a.m.

4. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
HEARING ON DEMURRER TO: PLAINTIFF'S 2ND AMENDED COMPLAINT
FILED BY: AMIRDELFAM, KASRA, MD
TENTATIVE RULING:

The hearing on this motion is continued to September 11, 2026 at 9:00 a.m.

5. 9:00 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
HEARING ON DEMURRER TO: CROSS-COMPLAINT
FILED BY: MACHADO, ELVECIO
TENTATIVE RULING:

Before the Court is the unopposed Demurrer, filed May 29, 2026, of Plaintiffs and Cross-Defendants (Cross-Defendants) Elvecio Machado and Tatiana Arambulo to the Verified Cross-Complaint filed April 27, 2026 of Defendants and Cross-Complainants (Cross-Complainants) Gino Caruso and Laudelino Caruso.

The motion was originally set to be heard on October 30, 2026. However, during a Case Management Conference on June 9, 2026 with all parties present, the court advanced the hearing date to September 4, 2026. On August 28, 2026 – five court days before the September 4, 2026 hearing date, Cross-Complainants Gino Caruso and Laudelina Caruso, representing themselves, filed a pleading styled, “Defendants/Cross-Complainants Gino Caruso and Laudelina Caruso’s Notion of Motion and Motion for Continuance of Hearing on Cross-Defendants’ Demurrer and Motion to Strike; Request for an Order Shortening Time and Earliest Available Hearing” in which they requested, among other things, that the Court “hear and determine the request for continuance first at the September 4 hearing, before proceeding with the Demurrer and Motion to Strike.” This request is **denied**.

The Cross-Complainants’ opposition papers were due 9 court days prior to the hearing date. Cross-Complainants did not file an opposition to the instant motion. The Cross-Complaints’ August 28, 2026 request for the court to hear a motion to continue the hearing set for September 4, 2026 is denied as untimely. The request for an Order Shortening Time is denied as impractical. The Cross-

Complainant's papers were filed 5 court days prior to the September 4th hearing date and the court had no hearing dates between August 28, 2026 and September 4, 2026.

Factual and Procedural Background

Cross-Defendants Machado and Arambulo are shareholders, directors, and officers of Cars To Go Towing, Inc. ("CTGT"), a California towing corporation organized in 2017. Cross-Complainants Gino and Laudelina Caruso are likewise shareholders, directors, and officers of CTGT, holding a combined 60% interest. Cross-Defendants filed their original complaint on May 6, 2023, and their Verified First Amended Complaint on April 17, 2026, alleging, among other things, that Cross-Complainants breached fiduciary duties by diverting a corporate opportunity to a competing business, Cars To Go, Inc., concealing that diversion from the Board, freezing Cross-Defendants out of corporate accounts and operations, and sending a misleading dissolution letter designed to devalue CTGT.

On April 26, 2026, Cross-Complainants filed the Verified Cross-Complaint at issue here. Cross-Complainants are no longer represented by counsel and filed the Cross-Complaint in pro per. The Cross-Complaint asserts five causes of action: (1) Breach of Duty of Loyalty; (2) Fraud/Concealment; (3) Constructive Fraud; (4) Malicious Prosecution; and (5) Unjust Enrichment.

Trial is currently set for October 13, 2026.

Legal Standard

A demurrer tests the legal sufficiency of the allegations in a complaint. Code Civ. Proc. § 430.10(e); *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal. App. 4th 968, 994. While a court accepts well-pleaded factual allegations as true, it does not accept contentions, deductions, or conclusions of law. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. Where a pleading fails to state sufficient facts to constitute a cause of action, demurrer is proper. Code Civ. Proc. § 430.10(e).

Analysis

Second Cause of Action for Fraud / Concealment

Fraud must be pleaded with particularity. "Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made." *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73. General and conclusory allegations are insufficient. *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184. Fraud and fraud-based causes of action are subject to a heightened pleading standard: every element must be alleged with specificity as to the who, what, when, where, and how. *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.

The Second Cause of Action is styled, "Fraud/Concealment (Intentional Misrepresentation by Omission.) Cross-Complainants allege that Elvecio Machado had a duty to disclose running and owning two (2) competing local tow businesses since February and March 2019, one of which being

registered in the City of Concord, to his fellow Company shareholders. (Cross-Complaint ¶ 137.)

“A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages.” (CACI 1900, *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816.)

The Second Cause of Action fails any representation by any Cross-Defendants, let alone the falsity of the statement, the dates when the representation was made, an intent to deceive or induce reliance, justifiable reliance by the plaintiff and specific damages.

To the extent this claim sounds in concealment, the Second Cause of Action also fails to allege facts sufficient to plead a cause of action.

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the facts and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal. 5th 1, 40.)

Cross-Complainants have plead the existence of a duty to disclose but have not plead facts to demonstrate that the Cross-defendant intended to defraud the Cross-Plaintiff by intentionally concealing or suppressing the fact; the Cross-Plaintiff was unaware of the facts and would have acted differently if the concealed or suppressed fact was known; and (5) the Cross plaintiff sustained damage as a result of the concealment or suppression of the material fact.

The demurrer to the Second Cause of Action is **sustained** with leave to amend.

Third Cause of Action for Constructive Fraud

The Cross-Complaint alleges, “Cross Defendant Elvecio Machado failed to disclose material facts, such as the undisputed facts that he was running and owning two (2) competing local tow businesses since February and March 2019.” (Cross-Complaint ¶ 140.)

Constructive Fraud requires a fiduciary relationship, that the defendant acted on plaintiff’s behalf for purposes of a transaction(s), that defendant misled the plaintiff by failing to disclose information or providing information that was inaccurate or incomplete, that plaintiff was harmed and that the defendant’s conduct was a substantial factor in causing plaintiff’s harm. (Civil Code 1573, CACI 4111, *Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1131.) Cross-Defendant is correct in pointing out that constructive fraud does not require intentional deceit.

The Third Cause of Action fails to allege a fiduciary duty owed by Cross-Defendant Machado, that he obtained an advantage through breach of a duty, that the Cross-Plaintiffs were harmed and that the Cross-Defendant’s conduct was a substantial factor in causing Cross-Plaintiff’s harm.

The Demurrer to the Third Cause of Action is **sustained** with leave to amend.

Fourth Cause of Action for Malicious Prosecution

A claim for malicious prosecution of a civil action requires among other things that the lawsuit ended in plaintiff's favor. (CACI 1501, *Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50.)

The Cross Complaint alleges that the current lawsuit was filed by Plaintiffs without probable cause. (Cross-Complaint, ¶¶ 143, 146.)

The Court agrees that this cause of action fails as a matter of law and cannot reasonably be cured by amendment.

The demurrer to the Fourth Cause of Action in the Cross-Complaint is **sustained without leave to amend**.

Fifth Cause of Action for Unjust Enrichment

The Fifth Cause of Action, styled "Unjust Enrichment," alleges that Cross-Defendant Elvecio Machado was "excessively overpaid for the payback of his fragmented loans, which should be returned to the Company," "was unfairly paid shareholder's distributions when none of his Company fellow shareholders received any, which should be returned to the Company," and personally benefitted from the Company's resources, which should be paid to the Company.

There is no cause of action for "unjust enrichment." *Melchior v. New Line Productions, Inc.* (2003) 106 Cal.App. 4th 779, 793. Cross-Plaintiffs must allege a cognizable legal theory.

The demurrer to the Fifth Cause of Action in the Cross-Complaint is **sustained** with leave to amend.

Conclusion

The demurrer to the Second and Third Causes of Action in the Cross-Complaint is **sustained** with leave to amend. The demurrer to the Fourth Cause of Action in the Cross-Complaint is **sustained without leave to amend**. The demurrer to the Fifth Cause of Action in the Cross-Complaint is **sustained** with leave to amend.

Cross-Defendants are directed to prepare and serve notice of entry of this order on Cross Complainants. Cross-Complainants must file an Amended Complaint within 30 days of service of notice of entry of this order.

6. 9:00 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF THE CROSS-COMPLAINT
FILED BY: MACHADO, ELVECIO
TENTATIVE RULING:

Before the Court is the unopposed Motion, filed May 29, 2026, of Plaintiffs and Cross-Defendants

(Cross-Defendants) Elvecio Machado and Tatiana Arambulo to Strike Portions of the Verified Cross-Complaint filed April 27, 2026 of Defendants and Cross-Complainants (Cross-Complainants) Gino Caruso and Laudelino Caruso. The motion is **granted**.

The motion was originally set to be heard on October 30, 2026. However, during a Case Management Conference on June 9, 2026 with all parties present, the court advanced the hearing date to September 4, 2026. On August 28, 2026 – five court days before the September 4, 2026 hearing date, Cross-Complainants Gino Caruso and Laudelina Caruso, representing themselves, filed a pleading styled, “Defendants/Cross-Complainants Gino Caruso and Laudelina Caruso’s Notion of Motion and Motion for Continuance of Hearing on Cross-Defendants’ Demurrer and Motion to Strike; Request for an Order Shortening Time and Earliest Available Hearing” in which they requested, among other things, that the Court “hear and determine the request for continuance first at the September 4 hearing, before proceeding with the Demurrer and Motion to Strike.” This request is **denied**.

The Cross-Complainants’ opposition papers were due 9 court days prior to the hearing date. Cross-Complainants did not file an opposition to the instant motion. The Cross-Complaints’ August 28, 2026 request for the court to hear a motion to continue the hearing set for September 4, 2026 is denied as untimely. The request for an Order Shortening Time is denied as impractical. The Cross-Complainant’s papers were filed 5 court days prior to the September 4th hearing date and the court had no hearing dates between August 28, 2026 and September 4, 2026.

Analysis

The Cross-Defendants’ seek to strike the following allegations from the Cross-Complaint filed April 27, 2026:

- [1] Paragraph 76 (page 13, lines 12-16), in its entirety, on the ground that the characterization of Elvecio Machado's conduct as "bullying" and "abusive" is irrelevant to any pleaded cause of action and constitutes scandalous, prejudicial matter improper in a pleading. (CCP § 436(a).)
- [2] The phrase "moving materials at his pot farm in Humboldt County" from Paragraph 114 (page 17, lines 13-15), on the grounds that the allegation of an unrelated "pot farm" is irrelevant, scandalous, and designed solely to prejudice Cross-Defendants before the Court. (CCP § 436(a).)
- [3] Paragraph 118 (page 18, lines 1-3), in its entirety, on the ground that the allegation that Tatiana Arambulo misappropriated \$2,950 in cash is irrelevant to any pleaded cause of action and is prejudicial. (CCP § 436(a).)
- [4] All prayers for punitive damages and all related allegations of malice, fraud, or oppression, on the grounds that the Cross-Complaint contains no factual allegations sufficient to support a claim for punitive damages under Civil Code § 3294, and such allegations are therefore improper. (CCP § 436(b).)

In the absence of a filed opposition, the court finds the Cross-Defendants’ arguments to be reasonable

in the context of the Cross-Complaint's claims.

In the court's ruling on the Demurer to Cross-Complaint, the Court sustained the Demurrer with regard to the "Fraud/Concealment" and "Constructive Fraud" causes of action. Therefore the Court agrees that the prayers for punitive damages should be stricken.

The Motion to Strike is **granted**.

Cross-Defendants are directed to prepare and serve notice of entry of this order on Cross-Complainants. Cross-Complainants must file an Amended Complaint within 30 days of service of notice of entry of this order.

7. 9:00 AM CASE NUMBER: C23-01219

CASE NAME: ELVECIO MACHADO VS. GINO CARUSO

***HEARING ON MOTION IN RE: TO DISMISS FOR FAILURE TO COMPLY WITH COURT ORDER**

FILED BY: CARUSO, LAUDELINA

TENTATIVE RULING:

At the June 6, 2026 Case Management Conference, the court explained to the moving party that the premise of its motion was incorrect. Plaintiffs had not violated a court order because they filed their First Amended Complaint in a timely fashion. In open court, the moving party graciously agreed to withdraw this motion and this was noted in the minutes of the June 6, 2026 Case Management Conference.

The motion was previously withdrawn.

8. 9:00 AM CASE NUMBER: C24-00026

CASE NAME: AVERY TIDWELL VS. DOES 1 THROUGH 100, INCLUSIVE

***HEARING ON MINOR'S COMPROMISE AS TO JAYLYN BRUSSARD**

FILED BY: BRUSSARD, JAYLYN

TENTATIVE RULING:

Petitioner **Avery Tidwell's** Petition for Approval of Compromise of Minor **Jaylyn Brussard's** ("Minor") Claim ("Petition"), filed on April 13, 2026, is **granted**.

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged with the Court on April 13, 2026.

9. 9:00 AM CASE NUMBER: C24-00026
CASE NAME: AVERY TIDWELL VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MINOR'S COMPROMISE AS TO RON BRUSSARD**
FILED BY: BRUSSARD, RON
TENTATIVE RULING:

Petitioner **Avery Tidwell's** Petition for Approval of Compromise of Minor **Ron Brussard's** ("Minor") Claim ("Petition"), filed on April 13, 2026, is **granted**.

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged with the Court on April 13, 2026.

10. 9:00 AM CASE NUMBER: C24-02448
CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: TRILION CAPITAL FUND, LLC
TENTATIVE RULING:

Before the Court is the unopposed Demurrer of Cross-Defendant Trillion Capital Fund, LLC (Trillion) filed April 17, 2026 to the First Amended Cross-Complaint filed February 20, 2026 by Defendant and Cross-Complainant Sunayana Bedi (Bedi).

Procedural Background

In the underlying complaint, Plaintiff, FAT.HOMES, LLC, (Plaintiff) filed a Complaint (Complaint) against Defendants, Brar Group, LLC (Brar Group), Sukhpreet Brar (Brar) and Bedi (collectively "Defendants") for (1) Setting Aside Fraudulent Transfer (2) Fraud (3) Breach of Contract and (4) Rescission.

Bedi then filed a First Amended Cross-Complaint (CC) against Plaintiff, Brar Group, Brar, and Cross-Defendant Trilion for various causes of action, but

against Trilion only for quiet title to the real property located at 6178 Bernhard Avenue, Richmond, CA 94805 (the "Property"). Bedi has incorporated by reference the allegations of Plaintiff's Complaint into her Cross-Complaint. (CC, ¶9).

Trilion demurs to the Seventh Cause of Action in the Cross-Complaint, for quiet title on the grounds that Bedi has failed to state sufficient facts to establish any adverse interest or that Trilion's attempt at foreclosure is wrongful absent any facts to support such a claim.

Trilion's Request for Judicial Notice (RJN) is **granted**.

Factual Allegations

Around March of 2024, Brar Group took a loan from Trilion in the principal amount of \$653,300.00 secured by a Deed of Trust against the Property. (RJN, Ex. 1). Around June 6, 2024, Brar Group executed a Grant Deed to the Property, but the Grant Deed was not recorded until July 31, 2024. (See Complaint, Ex. A; RJN, Ex. 2). Plaintiff alleges Brar Group sold it the Property for \$195,000.00 on June 6, 2024, hence the Grant Deed. (Complaint, ¶9).

Plaintiff alleges that Brar asked Plaintiff not to record the Grant Deed because Brar had a loan that needed to be transferred to Plaintiff's name. Id. at ¶10. However, Plaintiff alleges that Brar Group executed a Deed of Trust against the Property in favor of Bedi for \$250,000.00. (See Complaint, Ex. B; RJN, Ex. 3). Plaintiff alleges that Brar Group did not own the Property at the time it took out the Deed of Trust in favor of Bedi. (Complaint, ¶18).

Bedi, on the other hand, alleges that Brar Group and Bedi entered into a Note about July 17, 2023. (CC, ¶10, Ex. A). Bedi's Note, Exhibit A to her Cross-Complaint, demonstrates that the Note was secured by the real property located at 3017 Sentney Ave., Culver City, CA, 90232. (CC, ¶11).

Bedi alleges Brar Group defaulted on her Note and she filed an action and lis pendens on another Property Brar Group allegedly owned. (CC, ¶12). Bedi claims that in exchange for dismissing her lawsuit and releasing the lis pendens, Brar Group executed that \$250,000.00 Deed of Trust in her favor against the Property. (CC, ¶13).

Bedi alleges she did not know that Brar Group had already executed a Grant Deed in favor of Plaintiff. (CC, ¶15). Bedi further claims a Reconveyance of Deed of Trust was forged and recorded against the Property around October 2024 thereby extinguishing her interest in the Property. (CC, ¶17, Ex. C). Bedi claims that Plaintiff, Brar, and Brar Group acted in concert to deprive her of her security interest in the Property. Bedi seeks to cancel the reconveyance of her deed of trust and seeks to quiet title.

The only place Trilion is mentioned is in Bedi's cause of action for quiet title in which she alleges Trilion allegedly knew that there was an issue with the reconveyance of her deed of trust and that Trilion's attempts to foreclose under Trilion's Deed of Trust was "wrongful." (CC, ¶57).

Legal Standard

A demurrer objects to a pleading by challenging its legal sufficiency, either procedurally or based on the substance of the pleading. (Code of Civil Procedure (CCP) § 430.10.) A demurrer is also appropriate where a complaint fails to allege facts to state a cause of action. (CCP §430.10(e)) In reviewing the sufficiency of a complaint against a demurrer, the Court is to treat the demurrer as admitting all material facts properly pled, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

"A demurrer tests the sufficiency of the complaint by raising questions of law." *Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706. A demurrer can be used to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially

noticeable. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Furthermore, a demurrer can be used where Plaintiff has included allegations that clearly disclose some defense or bar to recovery. (*Crosstalk Productions, Inc. v. Jacobson* (1985) 65 Cal.App.4th 631, 635. The court may not consider contentions, deductions, or conclusions of fact or law. (*Moore v. Conliffe* (1994) 7 Cal. 4th 634.) Plaintiff is required to allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Serv.* (2000) 81 Cal. App. 4th 39, 96.). Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (CCP § 430.10(e); *Zelig v. Cnty. of Los Angeles* (2000) 27 Cal. 4th 1112.)

A demurrer may also be sustained if a complaint is “uncertain.” Uncertainty exists where a complaint’s factual allegations are so confusing, they do not sufficiently apprise a defendant of the issues it is being asked to meet. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).)

Analysis

An action for quiet title seeks “to establish title against adverse claims to real or personal property or any interest therein. (CCP § 760.020.) Section 761.020 of the Code of Civil Procedure provides that in an action for quiet title, the party bringing the action must plead the following:

- a) A description of the property that is subject of the action,
- b) the title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. **If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession,**
- c) The adverse claims to the title of the plaintiff against which a determination is sought,
- d) The date as of which the determination is sought, and
- e) a prayer for the determination of the title of the plaintiff against the adverse claims.

(CCP §761.020 emphasis added.)

Bedi has named Trilion in her cause of action for quiet title on the basis of allegations that Trilion “claims an adverse interest in the Subject Property based on a Forged Deed of Reconveyance records on October 30, 2024 as Instrument No. 2024-0073535 and Grant Deed with the Contra Costa Recorder Office on July 31, 2024, DOC 2024-0073535.” (CC ¶ 55.) Bedi alleges Trilion “similarly was aware of the infirmities with the forged Deed of Reconveyance such that its attempt at foreclosure is wrongful.” (CC ¶ 57.)

The Cross-Complaint fails to allege any specific facts as to how Trilion supposedly knew the

reconveyance was forged or why Trillion's foreclosure was wrongful. Bedi asserts that "the Forged Deed of Reconveyance purposes to include notarized signature of (Cross-)Plaintiff Sunayana Bedi. Bedi, however, never signed, approved, or authorized her signature to be place on any deed of reconveyance." (CC ¶ 17.) Bedi then alleges on information and belief that "FAT.Homes., LLC, working in concert with Sukhpreet Brar and Brar Group, LLC has actual knowledge that the Forged Deed of Revconveyance was fraudulently procured and that Bedi's Deed of Trust remained unpaid and unsatisfied." (CC ¶ 18.) None of these allegations implicate Trillion or constitute specific facts describing adverse possession by Trillion.

Bedi fails to establish how Trillion's claims to the Property are without right.

The demurrer to the Seventh Cause of Action against Trillion is **sustained** with leave to amend.

Cross-Defendant Trillion shall serve Cross-Plaintiff with notice of the entry of this order. Cross-Plaintiff Bedi shall file and serve an amended pleading 30 days from the date of service of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C24-02448

CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**

FILED BY: TRILION CAPITAL FUND, LLC

TENTATIVE RULING:

Before the Court is the unopposed Motion to Strike Portions of Defendant / Cross-Complainant Sunayna Bedi's (Bedi) First Amended Cross-Complaint (Cross-Complain, or CC) brought by Cross-Defendant Trillion Capital Fund, LLC (Trillion).

Trillion seeks an order striking from the Prayer, ¶ 6, "Punitive Damages."

Separately, the court has sustained Trillion's Demurrer to the Seventh Cause of Action, for quiet title, which was the only cause of action against Trillion in the Cross-Complaint. (See Line 10 above.) A cause of action for quiet title is not a tort claim and does not award monetary damage. As such there are no claims or allegations against Trillion that would support an award of punitive damages.

Punitive damages are not available in quiet title causes of action, because the action for quiet title is equitable in nature. (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, citing *Caira v. Offner* (2005) 126 Cal.App.4th 12, 25, 24 Cal.Rptr.3d 233, citing *Strauss v. Summerhays* (1984) 157 Cal.App.3d 806, 812.)

The motion to strike punitive damages as to Cross-Defendant Trillion is **granted**.

Cross-Defendant Trillion shall serve Cross-Plaintiff with notice of the entry of this order. Cross-Plaintiff Bedi shall file and serve an amended pleading 30 days from the date of service of notice of entry of this order.

12. 9:00 AM CASE NUMBER: C24-02715
CASE NAME: KOLIUS WANE VS. JUDSON BRANDEIS, MD
***HEARING ON MOTION IN RE: TO SEAL COURT RECORDS**
FILED BY: WANE, KOLIUS
TENTATIVE RULING:

Before the Court is motion of I.W. as Guardian ad Litem (GAL) for minor Plaintiff K.W. for an order redacting or sealing the identifying portions of court records such that no search for his name will yield documents concerning this case, directing that future filings refer to Plaintiff and his GAL by initials only, and directing that all future filings containing sensitive medical information concerning the minor Plaintiff be lodged under seal.

Given the sensitive nature of the medical malpractice claims alleged (injury to the genitals of a minor), the court finds good cause under California Rules of Court (CRC) 2.550(d). The court finds the minor plaintiff's overriding interest in privacy overcomes the right of public access to the record, the overriding interest supports sealing records which would disclose the minor's identity, a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed, and proposed sealing/redaction (limited to the name of the minor and of the minor's GAL) is narrowly tailored, and no less restrictive means exists to achieve the overriding interest.

The court finds that the proposed wholesale sealing of documents described by the Plaintiff is overbroad. Instead of sealing entire court records, reports, pleadings, briefs, transcripts, etc., the court orders as follows:

[A] **Future filings:** All parties use the minor's initial (K.W.) and the initials of the minor's GAL (I.W.) from any pleadings, exhibits, and documents filed with the court. In exhibits or reports the minor's name and the GAL's name must be redacted and replaced by the person's initials. If a document or exhibit is an audio or video recording, and redaction is not possible, the exhibit must be filed under seal.

[B] **Past filings** with the court: For any past filings with the court that plaintiff wishes to have redacted, plaintiff may e-file the court with redacted versions of the documents with a cover sheet on colored paper for each document explaining that the documents are redacted versions of documents already filed. The cover sheet for each document must be very specific about which documents are to be replaced and on what date the original document was filed.

Procedure:

[1] **Redaction of filed documents:** Plaintiff is ordered to physically redact the name of the minor and of the GAL from filed endorsed hard copies of filed documents and prepare a cover sheet on colored paper to each one explaining that the document is a redacted version of a document already filed, and the date the original document was filed. Plaintiff must attach a statement under oath verifying that the only change from each original to the corresponding redacted document was the substitution of the initials "K.W." for the minor's name, and the substitution of the initials "I.W." for the name of

the GAL

[2] **Defense opportunity for review and objection:** Prior to submitting a redacted version of any document to the court, Plaintiff must submit the proposed redacted versions to Defense counsel for review. Defense counsel has 45 days from the receipt of any proposed redacted documents to object to the proposed redactions. Any objections must be in writing and sent to Plaintiff's counsel. If Defense counsel does not object in writing within 45 days, Plaintiff may send the redacted documents, along with a cover sheet for each document as described above. If the defense objects in writing the parties must meet and confer to work out an agreement.

[3] **Presentation of redacted documents to court:** if there are no objections, or after objections are worked out by mutual agreement, Plaintiff must efile the documents (in a group, not separately) with the court with a cover sheet on colored paper for each one explaining that the document is a redacted version of a document already filed, and the date the original document was filed.

Plaintiff must attach a statement under oath verifying that the only change from the original document to the corresponding redacted document was the substitution of the initials "K.W." for the minor's name, and the substitution of the initials "I.W." for the name of the GAL, and that Defense counsel has been given 45 days to review the redacted documents, and no objections were received, or that written objections were received and the parties are in agreement that the proposed redacted versions be substituted into the court filed.

[4] **Court entries:** the court will direct the Civil clerk's office to change the name of the minor and the name of the GAL to their initials: "K.W." for the minor and "I.W." for the GAL in the case management system.

The order will become effective on the date that Plaintiff serves of notice of entry of this order on Defendants. Plaintiff shall file proof of service of notice of entry of this order with the Court.

13. 9:00 AM CASE NUMBER: C25-00599

CASE NAME: LYNDEN TRIPP VS. JAMES WINDLEY

***HEARING ON MOTION IN RE: RELIEF FROM MISTAKE, INADVERTENCE, SUPRISE OR EXCUSABLE
NEGLECT**

FILED BY: WINDLEY, JAMES

TENTATIVE RULING:

Before the Court is Defendant's Motion for Relief from Mistake, Inadvertence, Surprise, or Excusable Neglect Under Code of Civil Procedure Section 473(B).

Defendants' Counsel asserts he lost contact with Defendant James Windley, the individual defendant named in the case, and inadvertently failed to serve responses to Plaintiff's Requests for Admissions and Form Interrogatories, Set One, to James Windley.

The motion is **denied**. The court finds Section 473 of the Code of Civil Procedure does not provide for the relief sought here, when the Discovery Act provides analogous, if more limited relief. (*Zellerino v.*

Brown (1991) 235 Cal. App. 3d 1097, 1107.) Here Code of Civil Procedure Sections 2030.290(a) and 2033.280 authorize a court to relieve a party from waiver by failure to timely respond to interrogatories and requests for admissions. Thus relief under Section 473 is unavailable to Defendants.

The motion to compel responses to Plaintiff's Requests for Admissions and Form Interrogatories is set for hearing on September 9, 2026. It is at that time and in that hearing that Defendant may seek relief from his failure to timely respond to Plaintiff's discovery.

Plaintiff's request for sanctions is **denied**.

14. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL SAM FERGUSON
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

15. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL BILL BERLAND
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

16. 9:00 AM CASE NUMBER: C25-01748
CASE NAME: E. LELAND ROAD ASSOCIATES, LLC VS. BW E LELAND PITTSBURG LLC
MOTION TO BE RELIEVED AS COUNSEL BE RELIEVED AS COUNSEL NOAH BERLAND
FILED BY: E. LELAND ROAD ASSOCIATES, LLC
TENTATIVE RULING:

Motion withdrawn by moving party as moot. Counsel notified court that Substitution of Counsel notices are being filed.

17. 9:00 AM CASE NUMBER: C26-00479
CASE NAME: EVAN OWENS VS. ELIZABETH LAYN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT/CONT'D TO 9/4/26 FROM 8/21/26
FILED BY: LAYN, ELIZABETH G.
TENTATIVE RULING:

Before the Court is a demurrer by defendants to the first amended complaint. For the reasons set forth, the general demurrers to first and second causes of action are **sustained, with leave to amend**,

and the general demurrer to the third cause of action and to the first amended complaint in its entirety for failure to allege facts sufficient to state any cause of action are **overruled**. The general demurrers to the fourth, fifth, and sixth causes of action based on lack of subject matter jurisdiction are **overruled**; however, based on the doctrine of exclusive concurrent jurisdiction, or alternatively, based on the Court's inherent authority, the claims against defendant Elizabeth A. Layn ("Annie") in the fourth, fifth, and sixth causes of action are **stayed**, as set forth further below.

Background

This action was filed by plaintiff Evan Owens ("Evan") against defendants Frederick C. Layn ("Frederick"), Elizabeth G. Layn ("Elizabeth G"), and Elizabeth A. Layn ("Annie," as referred to in the first amended complaint ("FAC")), the daughter of Frederick and Elizabeth G (FAC p. 2, fn. 1). (Frederick and Elizabeth G are sometimes referred to as the "Layn defendants" in this ruling.) The Court uses first names not out of disrespect but to avoid confusion given that the three defendants have the same last name. Plaintiff alleges that in July 2011, he married Annie, but that they are in proceedings to dissolve their marriage. (FAC ¶ 8.) He alleges they separated in October 2023, and dissolution proceedings were initiated in February 2024 (or February 2025). (FAC ¶¶ 36, 37 [February 2024], 38 [February 2025].)

The dispute relates to real property referred to as the "Walkup Ranch" located on Lincoln Castle Highway in Lincoln, California (the "Property"). The Property was allegedly owned by Elizabeth G and her sister Jeanette Duff, who entered into a development agreement memorialized in a Project Entitlement and Option Agreement with Lake Development-Lincoln, LLC, a limited liability company also owned by Elizabeth G and Duff (the "LLC"). (FAC ¶¶ 9, 12.)

Plaintiff alleges that (a) at some unspecified time, Elizabeth G made a "Promise" to Annie and Evan that they would receive \$1,000,000 from the successful sale of the Property (FAC ¶ 13); (b) that in December 2012, Elizabeth G signed a notarized document stating that she made gifts to Annie totaling 20% of Elizabeth G's 50% share of the Property (the alleged "Gift") (FAC ¶ 15 and Exh. 1); (c) that "days prior to their marriage," the LLC made a promissory note dated July 5, 2011 in the amount of \$150,000 in favor of Annie and Evan (the "Note") (FAC ¶¶ 17, 18 and Exh. 2); (d) based on a request by Frederick and Elizabeth G for Annie and Evan to lend them the funds Annie and Evan received from the Note, there was an "Oral Contract" pursuant to which Annie and Evan allegedly "agreed to send the proceeds" of the Note to Frederick and Elizabeth G, and Frederick and Elizabeth G allegedly agreed "to repay those funds at some point in time after" Frederick and Elizabeth G received payment from the sale of the Property to a third party, Taylor Morrison (FAC ¶¶ 22, 23); and (e) before the sale of the Property to Taylor Morrison was finalized, the LLC and Annie and Evan entered into an Amendment to Promissory Note dated May 17, 2019 ("Amended Note"), which among other things, amended the Note and designated Annie as a "collection agent" authorized to receive payments on behalf of Annie and Evan as payee (FAC ¶¶ 24, 25 and Exh. 3).

Plaintiff further alleges that Annie and Evan decided to forego enforcing their claim to the Property based on the Promise (and the Gift) to avoid interfering with the sale, though they would have received over \$1 million based on the Gift because the Property eventually sold for \$26 million. (FAC ¶¶ 26, 27.) Plaintiff alleges Taylor Morrison made payments for the Property beginning in mid-2019 and a final payment in March 2022. (FAC ¶ 28.) Frederick and Elizabeth G allegedly made a payment

to Annie of \$100,000 in March 2022 which they represented was an initial installment toward the \$1 million Promise amount, but Elizabeth G later signed a sworn statement in June 2025 stating the \$100,000 was a bonus for Annie's work on the development of the Property. (FAC ¶¶ 32, 33, 39.) He alleges Frederick and Elizabeth G "continued to represent" to Evan that they would be paid the rest of the funds under the Promise during the period Annie and Evan were separated and before the dissolution proceedings began. (FAC ¶¶ 34-37.)

Based on these facts, Plaintiff alleges six causes of action, three against Frederick and Elizabeth G and three against Annie.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (See also Code Civ. Proc. § 452.) In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial notice. (*Evans, supra*, 38 Cal.4th at 6; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.)

In determining whether the complaint states a cause of action, the Court evaluates "whether a cause of action has been stated under any legal theory. [Citation omitted.]" (*Gomez v. Regents of University of California* (2021) 63 Cal.App.5th 386, 391.) (See also *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co., supra*, 19 Cal.4th at 39.)

Defendants' Request for Judicial Notice

In support of their demurrer, defendants request the Court take judicial notice of a series of documents recorded in the Placer County Recorder's Office, including (1) a Memorandum of Project Entitlement and Option Agreement recorded on October 13, 2009; (2) a Release and Termination of Memorandum recorded on May 31, 2019; (3) a Purchase Money Deed of Trust, Assignment of Rents, Security Agreement and Fixture Filing recorded on April 3, 2020; (4) Grant Deed recorded on April 3, 2020; (5) a First Modification of the Deed of Trust recorded on June 18, 2021; (6) a Second Modification of the Deed of Trust recorded on November 1, 2021; and (7) a Substitution of Trustee and Full Reconveyance recorded on March 10, 2022. (Def. RJN Exhs. 1-7.) Plaintiff has not opposed the request.

The Court can take judicial notice of the existence of recorded documents, with limitations. (Evid. Code § 452(c); *Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 [judicial notice of recorded documents]; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.) Judicial notice cannot be taken of disputed facts that may be stated in the document. (*Fontenot, supra*, 198 Cal.App.4th at 266-267.) Subject to the applicable limitations on judicial notice, the Court **grants** the unopposed request for judicial notice.

Defendants' Overlength Memorandum

Defendants' memorandum in support of the demurrer is 17 pages, which violates the 15-page limit in the California Rules of Court. (Cal. R. Ct., 3.1113(d).) Defendants did not ask for leave to file the overlength brief. (Cal. R. Ct., Rule 3.1113(e).) Plaintiff did not object to the overlength brief in the opposition. The Court in its discretion will consider the overlength brief but cautions the parties that it expects compliance with the applicable rules in future filings. (Cal. R. Ct., Rule 3.1113(g).)

Analysis

Defendants generally demur to the FAC in its entirety on two grounds: that Plaintiff has failed "to state facts sufficient to constitute each and every cause of action therein," and under Code of Civil Procedure § 430.10(a), that the Court lacks "jurisdiction over the subject matter of the claims against" Annie. Only three of the causes of action of the FAC (4th, 5th, and 6th C/As) are alleged against Annie. They also assert demurrers to each of the sixth causes of action.

Demurrers to Causes of Action Against Frederick and Elizabeth G

A. Demurrer to 1st Cause of Action for Breach of Oral Contract

Plaintiff alleges a first cause of action for breach of the alleged Oral Contract. Plaintiff alleges Frederick and Elizabeth G breached the Oral Contract by Frederick and Elizabeth G "failing to make the required payments to [Evan and Annie] on the Amended Note for the full amount paid to the Layns, plus interest." (FAC ¶ 46.)

1. Legal Background

The essential elements of a cause of action for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citations omitted.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) For any contract to be enforceable, it must be " 'sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached.' [Citation omitted.]" (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209.)

The promise "must be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages. [Citations omitted.] 'Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.' [Citations omitted.] . . . 'If . . . a supposed "contract" does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.' [Citation omitted.]" (*Id.*) (*See also Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal. App. 4th 1150, 1174, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919 [" 'The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy. " 'Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.' " [Citation omitted.]' "].)

"Typically, a contract involving a loan must include the identity of the lender and borrower, the amount of the loan, and the terms for repayment in order to be sufficiently definite. [Citation

omitted.]" (*Daniels, supra*, 246 Cal. App. 4th at 1174.) (*See also Westlands Water Dist. v. All Persons Interested* (2023) 95 Cal.App.5th 98, 127 [same].)

2. Absence of Essential Facts and Contradictory Allegations Regarding the Oral Contract and Its Breach

Plaintiff alleges that in or around 2019, at about the time Elizabeth G, Duff, and the LLC learned of the opportunity to sell the Property to Taylor Morrison, Frederick and Elizabeth G needed money. He alleges that they asked Evan and Annie to lend them the funds to be repaid to Annie and Evan under the Note from the LLC, that Evan and Annie "agreed" to send the "proceeds" of the Note to Frederick and Elizabeth G, and Frederick and Elizabeth G would repay those funds sometime after the sale of the Property to Taylor Morrison. (FAC ¶¶ 22, 23.)

Plaintiff does not allege that Annie and Evan actually received any proceeds of the Note from the LLC which they could then lend to Annie's parents. Plaintiff's allegation that Annie and Evan "agreed" to send proceeds is not the same as an allegation that they sent proceeds of the Note to make the alleged loan subject to the Oral Contract. Plaintiff does not allege the amount of any proceeds they sent to Frederick and Elizabeth G from the Note or any other facts alleging the loan amount subject to the alleged Oral Contract, which is essential to a loan contract. (*See* FAC ¶¶ 22, 23, 44, 45; *Daniels, supra*, 246 Cal. App. 4th at 1174; *Westlands Water Dist., supra*, 95 Cal.App.5th at 127.) The term "proceeds" is not enough to allege the amount of the loan subject to the alleged Oral Contract.

Further, the allegations regarding the loan to Frederick and Elizabeth G from the Note "proceeds" on which the Oral Contract are founded are contradicted by the exhibits attached to the FAC. Plaintiff alleges that the LLC made an Amended Note in May 2019 which, on its face (*see* FAC Exh. 3), modified the repayment terms and maturity date of the original Note, which did not call for any payments to be made on the Note until maturity. (FAC Exh. 2 [Note para. 3], Exh. 3 [Amended Note para. 3]). The face of the Note and Amended Note conflict with the implied factual allegation on which the Oral Contract is premised, specifically that Annie and Evan received any proceeds from the Note from the LLC in 2019 that Annie and Evan could then loan to Frederick and Elizabeth G pursuant to the alleged Oral Contract.

"As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation omitted.] The courts, however, will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. [Citations omitted.]" (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) (*See also Sarale v. Pacific Gas & Electric Co.* (2010) 189 Cal. App. 4th 225, 245 [holding exhibit attached to the complaint contradicted the allegation that no easement existed, stating that the court accepts as true the facts appearing in exhibits attached to the complaint, and if the facts appearing in the exhibit "contradict those expressly pleaded, those in the exhibit are given precedence. [Citations.]" [Citation omitted.]].)

Plaintiff directs the Court to Exhibit A to the Amended Note, which he argues "reflected the amounts owing from Lake as of May 31, 2019" (Opp. p. 5, reproducing Exhibit A from the Amended Note). To the extent that Plaintiff's contention is that the amount of the alleged loan Evan and Annie made to the Layn defendants from the Note proceeds subject to the Oral Contract is shown by Exhibit A to the Amended Note, Exhibit A to the Amended Note only highlights the factual contradiction between the

Exhibits attached to the FAC and the implied allegation that Annie and Evan received proceeds from the Note that they then loaned to Frederick and Elizabeth G personally to make the loan subject to the Oral Contract.

Consistent with the original Note being modified by the Amended Note, Exhibit A to the Amended Note supports that the original Note was not paid in May 2019, but rather that the outstanding amount of that original Note remained outstanding when the Amended Note was made, changing the time, terms and conditions for the repayment of the \$150,000 plus interest due under the Note. Exhibit A to the Amended Note shows the original loan amount of \$150,000 outstanding in July 2011 when the Note was made, with accruing interest each year through May 2019 when the Note was amended by the Amended Note, without reflecting any payments on the outstanding balance.

Indeed, there would be no outstanding balance owed under the Amended Note, reflected in Exhibit A to Exhibit 3 to the FAC, if the balance owed under the original Note had been paid to Annie and Evan. The outstanding balance under the Note would have been zero; the "proceeds" of the Note would have been paid by the LLC to the payees, Annie and Evan, so that they could "send" the proceeds to the Layn defendants to fund the personal loan Plaintiff alleges was subject to the Oral Contract. There would have been no need for or basis for making an Amended Note; the original Note would have been satisfied by the "proceeds" received by Annie and Evan, and then Annie and Evan would have lent/sent those proceeds to the Layn defendants for the personal loan to Frederick and Elizabeth G that is the subject of the Oral Contract.

Based on the Amended Note that shows an outstanding balance in May 2019 from the original Note in Exhibit A, Plaintiff is essentially alleging facts in the FAC that would give Evan and Annie a double recovery on the same funds; specifically, a right to be paid for the same funds from the personal loan of the Note "proceeds" that may have allegedly been "sent" to Frederick and Elizabeth G, plus a right to be paid under the Amended Note by the LLC for the outstanding balance shown in Exhibit A to the Amended Note. Exhibit A to the Amended Note does not resolve, but only exacerbates, the factual deficiencies and contradictions between Plaintiff's Oral Contract allegations in paragraphs 22 and 23 of the FAC and Exhibits 2 and 3 to the FAC.

To the extent Plaintiff would argue that, notwithstanding these contradictions, he has sufficiently stated the claim for breach of the Oral Contract based on his general allegations regarding his performance of "substantially all" "significant things" he was required to do under the Oral Contract and the conditions for defendants' performance occurred (FAC ¶¶ 45, 46). "It is well established that in the context of a demurrer, specific allegations control over more general ones. [Citations omitted.] As the court explained in *Perez*, 'Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that add details or explanatory facts, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation. [Citations.] Under this principle, it is possible that specific allegations will render a complaint defective when the general allegations, standing alone, might have been sufficient.' [Citation omitted.]" (*Chen v. PayPal, Inc.* (2021) 61 Cal. App. 5th 559, 571-572 [finding breach of contract cause of action failed based on this principle].)

Plaintiff's allegations regarding how the Layn defendants breached the Oral Contract also raise

additional contradictions between the FAC Oral Contract factual allegations and the facts shown in the exhibits attached to the FAC. Plaintiff alleges Frederick and Elizabeth G breached the Oral Contract "by failing to make the required payments to Evan and Annie on the Amended Note for the full amounts paid to" Annie's parents [presumably the "proceeds" of the Note alleged in paragraphs 22 and 23], plus interest. (FAC ¶ 46.) Frederick and Elizabeth G are not the makers of or obligors on the Amended Note and had no duty to make payments on the Amended Note; the LLC is the "Maker" and obligor. (FAC Exh. 3.) The allegation regarding the acts constituting the breach contradicts the terms of Exhibit 3 attached to the FAC, because Frederick and Elizabeth G were not obligated personally to make any payments to Annie and Evan under the Amended Note. At best, the allegations of paragraph 46 regarding the breach, in the context of the other allegations supporting the FAC, are ambiguous, conflicting, and indefinite regarding the alleged breach of the Oral Contract.

Given these deficiencies in the facts alleged to support the first cause of action, the Court need not reach other grounds for the demurrer to this cause of action. The demurrer to the first cause of action is **sustained, with leave to amend**.

B. Demurrer to Breach of the Implied Covenant of Good Faith and Fair Dealing (2nd C/A)

Plaintiff's second cause of action against Frederick and Elizabeth G is related to the first. He alleges a cause of action for breach of the implied covenant of good faith and fair dealing in the Oral Contract. He alleges a breach of the implied covenant based on Frederick and Elizabeth G failure to repay Evan and Annie "the funds paid out on the Amended Note" and by representing to Evan and Annie the funds would be repaid "even after" they had decided they would try to preclude Evan from receiving payment. (FAC ¶ 53.)

"[I]n California every contract contains an implied covenant of good faith and fair dealing that 'neither party will do anything which will injure the right of the other to receive the benefits of the agreement.' [Citations, internal omitted.]" (*Wolf v. Walt Disney Pictures & Television* (2008) 162 Cal.App.4th 1107, 1120.) "The covenant is read into contracts and functions ' "as a supplement to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract.' " [Citation omitted.]" (*Thrifty Payless, Inc. v. The Americana at Brand, LLC* (2013) 218 Cal.App.4th 1230, 1244 [quoting *Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031–1032].) Since the implied covenant supplements the express terms of a contract, to state a claim for breach of the implied covenant, there must be an underlying contract in which Plaintiff has the right to contractual benefits. (*Behnke v. State Farm General Ins. Co.* (2011) 196 Cal. App. 4th 1443, 1469 ["Absent an underlying contractual right, 'the implied covenant has nothing upon which to act as a supplement, and "should not be endowed with an existence independent of its contractual underpinnings." ' [Citation omitted.]; *Racine & Laramie, Ltd., supra*, 11 Cal.App.4th at 1031–1032].)

The implied covenant of good faith and fair dealing is "an implied-in-law term of the contract. Therefore, its breach will always result in a breach of the contract, although a breach of a consensual (i.e., an express or implied-in-fact) contract term will not necessarily constitute a breach of the covenant. [fn omitted] [¶] A ' "breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself" ' [Citation omitted.]" (*Careau & Co. v.*

Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1393-1394.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (*Id.* at 1395.)

Defendants contend this cause of action fails for the same reasons the first cause of action fails, and also because Plaintiff has not pled conduct constituting a breach of the Oral Contract separate from the breaches of the express terms of the Oral Contract alleged in the first cause of action. Plaintiff has not pleaded facts sufficient to allege the breach of Oral Contract cause of action, and those deficiencies also make this cause of action deficient.

The Court also concurs with defendants' argument that Plaintiff has failed to allege damages he sustained as a result of the breach of the implied covenant. Damages are an essential element of this cause of action as a form of breach of contract. (*Oasis West Realty, LLC, supra*, 51 Cal.4th at 821.) Plaintiff alleges only that he was "harmed" by the Layn defendants' conduct, but not that he sustained any damages or the amount of the alleged damages. (FAC ¶ 54.)

On these grounds, the demurrer to the second cause of action is **sustained, with leave to amend**. The Court need not reach the other grounds asserted for the demurrer to this cause of action.

C. Demurrer to Promissory Estoppel Cause of Action (3rd C/A)

Evan alleges a third cause of action for promissory estoppel based on Frederick and Elizabeth G's "clear and unambiguous" promise to pay Evan and Annie \$1 million after the sale of the Property which Evan and Annie allegedly reasonably relied on to their detriment by agreeing to a reduced interest rate in the Amended Note to 10% interest, and waiving the opportunity for Annie to assert her "putative ownership rights" in the Property, which would have resulted in funds from the sale being paid directly to her. (FAC ¶¶ 56-58.)

"The elements of a promissory estoppel claim are '(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.' [Citations, internal quotation marks omitted.]" (*Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 416-417 [quoting *Aceves v. U.S. Bank N.A.* (2011) 192 Cal.App.4th 218, 225].)

The promise on which this cause of action rests is not the Oral Contract but rather the alleged Promise by Frederick and Elizabeth G to pay \$1 million from the sale of the Property to Annie and Evan. (FAC ¶ 56.) Plaintiff alleges that he and Annie reasonably, foreseeably, and detrimentally relied on the Promise of the \$1 million payment by (a) accepting a reduced interest rate on the Note pursuant to the Amended Note; and (b) waiving Annie's assertion of her "putative ownership rights in the Property" by which funds from the sale of the Property would be paid directly to her. (FAC ¶ 57.)

Defendants demur to this cause of action solely on the ground that allegations in the FAC regarding the Promise contradict the allegations of the original complaint. Defendants contend that in the original complaint, Plaintiff alleged that the promise to pay \$1 million from the sale of the Property was made solely to Annie, but that Plaintiff now alleges the promise was made to both Annie and Evan. (Compare FAC ¶¶ 11 [gift to Annie and her family] and 13 [promise to Annie and Evan] to Compl. ¶¶ 11 [gift to Annie, without reference to Annie's family] and 13 [Elizabeth G promised Annie

[not Annie and Evan] would receive \$1 million from the sale of the Property].) They are invoking the sham pleading doctrine.

"Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. [Citation omitted.] . . . [¶] The sham pleading doctrine is not ' "intended to prevent honest complainants from correcting erroneous allegations . . . or to prevent correction of ambiguous facts." ' [Citation omitted.] Instead, it is intended to enable courts ' "to prevent an abuse of process." ' [Citation omitted.]" (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 426 [emphasis added].) (*See also Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406 [" 'A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false.' [Citation omitted.]" (Emphasis added.)); *Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 151-152 ["If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations. [Citations omitted.]" (Emphasis added.)).] "Where no explanation for an inconsistency is offered, the trial court is entitled to conclude that the pleading party's cause of action is a sham and sustain a demurrer without leave to amend. [Citation omitted.]" (*Zakk v. Diesel* (2019) 33 Cal. App. 5th 431, 447.)

Plaintiff has offered an explanation for the inconsistency in his opposition by asserting that Annie was married to Evan when the alleged Promise was made and that under California's community property laws, the promise presumptively included Evan as Annie's spouse. (Opp. p. 9.) He contends that the changes in paragraphs 11 and 13 merely clarify the fact that it was implicitly understood that Annie's portion necessarily included Evan as her husband. (Opp. p. 9.)

Defendants did not file a reply to the opposition. Based on the explanation offered in the opposition to which no response was filed, the Court accepts the explanation as sufficient for purposes of the sham pleading doctrine and this ruling on the demurrer. The demurrer to third cause of action made solely based on the sham pleading doctrine is **overruled**. The general demurrer as the FAC in its entirety for failure to allege facts sufficient to state any cause of action is therefore also **overruled**.

Causes of Action Against Annie

The FAC alleges causes of action against Annie for breach of contract based on Annie's breach of duties as collection agent under the Amended Note (4th C/A), breach of the implied covenant of good faith and fair dealing also related to Annie's acts or omissions related to the Amended Note (5th C/A), and breach of fiduciary duties for breach of her fiduciary duties to Evan as Owen's agent related to the Amended Note (6th C/A). In addition to the general demurrer to the FAC as a whole, defendants make general demurrers to each of the three causes of action for failure state facts sufficient to allege the causes of action and because the "family court has exclusive jurisdiction" over the subject of the three causes of action under Family Code § 2010.

A. Demurrer Based on Family Court Jurisdiction over the Dissolution

Plaintiff alleges that a dissolution proceeding was commenced in 2024 (or 2025), preceding the filing

of this lawsuit. (FAC ¶¶ 8, 36, 37, 38.) Plaintiff does not dispute the pendency of that proceeding.

Defendants cite lack of subject matter jurisdiction and Code of Civil Procedure § 430.10(a) as the basis for their demurrer. Plaintiff correctly points out that subject matter jurisdiction for purposes of Code of Civil Procedure § 430.10(a) refers to the fundamental subject matter jurisdiction. " 'The principle of "subject matter jurisdiction" relates to the inherent authority of the court involved to deal with the case or matter before it.' [Citation omitted.] Thus, in the absence of subject matter jurisdiction, a trial court has no power 'to hear or determine [the] case.' [Citation omitted.]" (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal. 4th 180, 196.) The authorities cited in support of the demurrer do not demonstrate that this Court does not have fundamental subject matter jurisdiction to consider the claims against Annie.

B. Exclusive Concurrent Jurisdiction

Plaintiff recognizes that in support of the demurrer to the claims against Annie, defendants have cited decisions such as *Glade v. Glade* (1995) 38 Cal.App.4th 1441 and *Askew v. Askew* (1994) 22 Cal.App.4th 942. As Plaintiff explains in his opposition, those cases do not hold that the civil department of the Court lacks fundamental subject matter jurisdiction but "stand for the narrower rule that once a family court has assumed jurisdiction to characterize, value, and divide community property, another department of that same court should not issue orders that adversely affect the family court's property-division function." (Opp. p. 14, ll. 9-16 [emphasis added].) (*See also McMillin v. Eare* (2021) 70 Cal. App. 5th 893, 918-919 [emphasis added, citing, among other decisions, *Askew v. Askew* (1994) 22 Cal.App.4th 942, 961–962 and *Glade v. Glade* (1995) 38 Cal.App.4th 1441, 1445, 1448, 1455, and 1458].) Plaintiff recognizes the cases "stand for a doctrine of priority and orderly administration, enforced by abatement or stay." (Opp. p. 14, ll. 16-17.)

Plaintiff also acknowledges that arguments and authorities raised in the demurrer raise the issue of exclusive concurrent jurisdiction, despite the reference to subject matter jurisdiction and Code of Civil Procedure § 430.10(a), and that defendants have requested as alternative relief a stay of the claims against Annie based on Family Code § 2010 and the case authorities cited. Indeed, Plaintiff opposes the demurrers to the claims against Annie by arguing that the exclusive concurrent jurisdiction doctrine does not allow dismissal of the causes of action but rather warrants abatement or a stay. (Opp. p. 14, ll. 19-28 [asserting that issues regarding exclusive concurrent jurisdiction invoke "a policy of comity and judicial economy, giving rise to a stay or abatement" though not a loss of jurisdiction, citing *Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, in which the Court ordered the action should have been stayed rather than dismissed where exclusive concurrent jurisdiction applied].)

Plaintiff's opposition concedes there is a dissolution proceeding involving Evan and Annie pending in the Superior Court of Nevada County. Plaintiff's alleges the dissolution proceeding commenced before this lawsuit, which was filed in 2026. It is apparent to the Court from the demurring parties' arguments, authorities cited, and relief requested, and also apparent to Plaintiff based on the arguments in his opposition, that the "jurisdiction" issue asserted by defendants is reasonably interpreted encompasses the judicially created doctrine of exclusive concurrent jurisdiction based on the prior pendency of the dissolution proceeding between Annie and Evan. (*See People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal. App. 4th 760, 769-771.)

The Court in *Plant Insulation Co.* explained, "Under the rule of exclusive concurrent jurisdiction, 'when two superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation, the first to assume jurisdiction has exclusive and continuing jurisdiction over the subject matter and all parties involved until such time as all necessarily related matters have been resolved.' [Citations omitted.] The rule is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy, and preventing vexatious litigation and multiplicity of suits. [Citations omitted.] The rule is established and enforced not 'so much to protect the rights of parties as to protect the rights of Courts of co-ordinate jurisdiction to avoid conflict of jurisdiction, confusion and delay in the administration of justice.' [Citation omitted.]" (*Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 786-787 [emphasis added].) (*See also County of Siskiyou v. Superior Court* (2013) 217 Cal. App. 4th 83, 92 ["[T]he rule of exclusive concurrent jurisdiction is a rule of policy, and countervailing policies may make the rule inapplicable. [Citation omitted.]"].)

The Court in *Plant Insulation Co.* explained that the application of the rule of exclusive concurrent jurisdiction is broader than a statutory plea in abatement which can be invoked by way of a demurrer under Code of Civil Procedure § 430.10(c):

Although the rule of exclusive concurrent jurisdiction is similar in effect to the statutory plea in abatement, it has been interpreted and applied more expansively, and therefore may apply where the narrow grounds required for a statutory plea of abatement do not exist. [Citation omitted.] Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions. [Citations omitted.] If the court exercising original jurisdiction has the power to bring before it all the necessary parties, the fact that the parties in the second action are not identical does not preclude application of the rule. Moreover, the remedies sought in the separate actions need not be precisely the same so long as the court exercising original jurisdiction has the power to litigate all the issues and grant all the relief to which any of the parties might be entitled under the pleadings. [Citations omitted.]

(*Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 788 [emphasis added].)

In his opposition, Plaintiff argues in detail why the Court should not grant defendants' alternative request to stay the claims against Annie in light of the pending dissolution action. He contends that Evan "managed and supported" the development of the Property for seven years (Opp. p. 15, ll. 1-3), but that management all took place during Evan's marriage to Annie as the Property sale was fully completed by 2022 before their separation and subsequent initiation of the dissolution. (FAC ¶¶ 8, 19, 28, 37, 38.) He argues that the Oral Contract and the Note "are business dealings, separate from the divorce." (Opp. p. 15, ll. 3-4.) He also argues that Annie's duties under the Amended Note were as a "business partner, not a spouse" and were "purely contractual" and separate from "marital matters." (Opp. p. 15, ll. 9-14.) But the Court notes Plaintiff justified his amendments in the FAC relating to the Promise allegedly being made to both Evan and Annie by citing his community

property interest at the time of the Promise for the \$1 million payment from the sale of the Property, because he and Annie were married when the alleged Promise was made. (See discussion of demurrer to 3rd C/A above.)

Plaintiff alleges that the Taylor Morrison payment for the purchase of the Property, which was to be a source for payments under the Amended Note by its terms, commenced in 2019 and concluded in 2022, which is consistent with the judicially noticed documents. (See Defs. RJN Exhs. 3-7.) Plaintiff cites no authority that "business dealings" conducted by spouses during marriage which produce claims or assets potentially subject to division under the Family Code are not subject to determination and allocation in a dissolution proceeding before the family law court.

Defendants cite authority that the assets subject to Evan's claims against Annie may be community assets based on the presumption that assets acquired during marriage are community property under Family Code § 760. Defendants cite Family Code § 2010 which provides that the family court has "jurisdiction to inquire into and render any judgment and make order that are appropriate concerning . . . [t]he settlement of the property rights of the parties." (Fam. Code § 2010(e).) The Family Code allows the family law court to divide separate property interests at the request of either party. (Fam. Code § 2650, cited in *Askew*, *supra*, 22 Cal.App.4th at 962.) The Court also observes that the Family Code also brings within the family court jurisdiction issues regarding the fiduciary duties of spouses, the management of community assets, and breaches of fiduciary duties with respect to the community assets. (Fam. Code §§ 721(b) [providing that spouses are in a confidential relationship with each other which is "a fiduciary relationship subject to the same rights and duties of nonmarital business partners"], 1100 [management and control of community assets], and 1101 [remedies for breaches of fiduciary duties].) Given these provisions of the Family Code, Plaintiff has not cited any contrary authority that shows the claims subject to his fourth, fifth, and sixth causes of action against Annie are not within the scope of the jurisdiction of the family court, such that the Court's exercise of jurisdiction over the claims alleged in the fourth, fifth, and sixth causes of action may interfere with the jurisdiction of the family court, and result in potentially inconsistent rulings, as well as a waste of judicial resources by duplication of proceedings. (*Plant Insulation*, *supra*, 224 Cal.App.3d at 788.)

The Court finds that the exclusive doctrine applies and that it supports a staying the claims against Annie alleged in the FAC.

C. Court's Inherent Authority to Stay Action

In addition, "[t]rial courts generally have the inherent power to stay proceedings in the interest of justice and to promote judicial efficiency." (*Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [emphasis added].) "[T]he power to stay proceedings is incidental to the power in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants." (*Landis v. North American Co.* (1936) 299 U.S. 248, 254.) A trial judge has inherent powers to manage and fashion procedures to control litigation to insure the orderly administration of justice. (*Cottle v. Superior Court* (1992) 3 Cal.App.4th 1367, 1376-79; *see also* Code Civ. Proc. §§ 128(a)(3) ["Every court shall have the power to do all of the following: To provide for the orderly conduct of proceedings before it, or its officers."] and (a)(5) ["Every court shall have the power to do all of the following: To control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in

every matter pertaining thereto."].) This inherent authority provides an additional basis for the Court to stay the action in light of the nature of the claims alleged against Annie, the cited provisions of the Family Code, and the undisputed existence of the dissolution proceedings between Annie and Evan in another court initiated at least a year or two before this civil action was filed.

D. Conclusion and Stay of Claims Against Annie

The general demurrers to the fourth, fifth, and sixth causes of action against Annie based on lack of subject matter jurisdiction under Code of Civil Procedure § 430.10(a) are **overruled**. Under the doctrine of exclusive concurrent jurisdiction, or alternatively, pursuant to the Court's inherent authority to stay the claims against Annie in the interests of justice, judicial efficiency, and avoidance of rulings that may interfere with the jurisdiction of the family court and the issues properly before that court in the dissolution proceeding, the action as to Annie and the claims alleged in the fourth, fifth, and sixth causes of action against her are hereby **stayed** pending (a) resolution of the dissolution proceeding between Plaintiff Evan and Annie in the Superior Court of California for the County of Nevada, or (b) further order of the Court.

Notwithstanding the stay of the claims against Annie, the Court will require Evan and Annie to apprise the Court periodically of the status of the dissolution proceeding and any impact events in that proceeding may have on the resumption of litigation of the stayed claims in this Court through appearance at the periodic case management/status conferences set in the case. The next case management conference in the case is scheduled for **8:30 a.m. on November 18, 2026**.

Given this ruling, and in light of the likelihood that events in the dissolution proceeding in the Nevada County Court may impact the claims made by Evan against Annie in the fourth through sixth causes of action, the Court does not reach any other grounds for the demurrers to the fourth through sixth causes of action.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: MSC22-00422

CASE NAME: BRADSHAW VS FRANCO HERRERA, IOX, LLC

***HEARING ON MOTION FOR DISCOVERY**

FILED BY: BRADSHAW, DANIEL

TENTATIVE RULING:

Before the Court is Plaintiff's Motion for a Protective Order Regarding Defendants' Demand for Second Medical Examination, filed August 13, 2026. Specifically, the Plaintiff seeks to restrict Defendants' ability to choose the physician of its choice for a second medical examination of the Plaintiff. The parties have met and conferred on this issue. (Declaration of David Livingston, filed August 18, 2026, "Livingston Decl." ¶ 14.) The Plaintiff's motion is **denied**.

Plaintiff's lawsuit seeks, among other things, damages for injuries to his left knee due to an incident occurring on March 8, 2021. Plaintiff filed his complaint for personal injury on May 4, 2022. Litigation ensued. Trial was set for October 13, 2026. Defendants retained Dr. Piers Barry, an orthopedist who

examined Plaintiff in 2023, as a damages expert and disclosed Dr. Barry to Plaintiff on **August 18, 2025**.

Plaintiff underwent total knee replacement on **February 23, 2026**. Plaintiff's counsel Gary Roth admitted to the court that he learned of his client's knee replacement sometime in March of 2026.

Plaintiff did not disclose the knee replacement procedure to Defendants. Plaintiff took Dr. Barry's deposition on **May 5, 2026**, and without disclosing the knee replacement to Defendants or to Dr. Barry. (Livingston Decl. ¶¶ 3-4 and Ex. B attached to Livingston Decl.)

Defendants learned of the knee replacement procedure on June 10, 2026. (Livingston Decl. ¶ 5) Two days later, at the parties' Issue Conference on June 12, 2026, Defendants moved for a continuance of the June 2026 trial date. The court set a new trial date of October 13, 2026 and ordered that Discovery would not be re-opened on issues of liability, but would be reopened on "damages related discovery stemming from Plaintiff's knee surgery in February of 2026."

The Plaintiff's motion to restrict Defendant's choice of expert for the second medical examination is without merit. Plaintiff argues that the previous expert, Dr. Barry, is qualified and assert that Defendants need to make a showing that Dr. Barry has a lack of qualification to conduct a further examination, that Dr. Barry is medically unqualified to examine Plaintiff's present condition, or that Dr. Barry's testimony was compromised because he was not told of Plaintiff's knee replacement surgery. Plaintiff assert that

"Defendants had their choice of examiner and they chose Dr. Barry," and that Defendants must cite to legal authority "that a repeat examination may proceed with a new orthopedist." Plaintiff's arguments lack supporting legal authority.

Because Plaintiff has put his physical condition at issue, he has waived his privacy rights as to that issue. Plaintiff's counsel objects that Defendants seek a "do-over" while their client "pays the price." This statement turns the facts upside down. Defendants have every right to know Plaintiff's post-incident medical procedures prior to designating their damages expert. Had Plaintiff not withheld information about Plaintiff's total knee replacement in February of 2026, the court finds it is almost certain that Defendants would not have designated a physician who has not performed a total knee replacement in years to be deposed in May of 2026. The court finds it near certain that Defendants would have designated an expert with current experience in that area. If Plaintiff is "paying a price," it is due to his counsel's non-disclosure of pertinent information.

The court finds good cause for the selection of Dr. Kevin Mikaelian as the examiner for the second medical examination: that Dr. Mikaelian has and continues to perform total knee replacement surgery, while Dr. Barry has not performed one in at least six years. The court finds this difference in experience satisfies the requirement described in *Shapira v. Superior Court* (1990) 224 Cal. App. 3d 1249, especially in a case in which Defendants might not have proceeded to designate Dr. Barry as their damages expert had they known that Plaintiff had undergone a total knee replacement. Defendant's expert may inquire into damages related issues related to Plaintiff's total left knee

replacement surgery, including not only his left knee but any other complaints he has had arising after his left knee replacement surgery, including issues relating to “impaired ait.”

Plaintiffs object that the location of the examination by Dr. Mikaelian – in Sacramento, CA, is more than 75 miles from Plaintiff’s residence in Corning CA. The parties seem to agree that the two locations are roughly 115 miles apart. (Opp. 6:5-11, 9:17-10:8, Livingston Decl., ¶ 11) Section 2032.320 of the Code of Civil Procedure provides,

e) If the place of the examination is more than 75 miles from the residence of the person to be examined, an order to submit to it shall be entered only if both of the following conditions are satisfied:

(1) The court determines that there is good cause for the travel involved.

(2) The order is conditioned on the advancement by the moving party of the reasonable expenses and costs to the examinee for travel to the place of examination.

The Court finds good cause as required by CCP § 2032.320(e)(1) for the travel involved, given that this whole procedure of a second examination might not have been warranted had the Plaintiff’s attorney forthrightly disclosed his February 23, 2026 knee replacement in March of 2026, prior to the Dr. Barry deposition. In addition, there is good cause for the second examination by Dr. Mikaelian, as opposed to Dr. Barry. Finally, Plaintiff’s admission in its Reply, “Plaintiff is willing to travel beyond the statutory distance to permit *Dr. Barry* to conduct a limited updated examination,” (Reply at 4: 20-22, emphasis added) acknowledges that travel beyond the 75 mile radius is something within Plaintiff’s capabilities.

The second condition, advancement of reasonable expenses and costs for the examinee for travel to the place of examination, is satisfied by the Defendant’s offer to reimburse Plaintiff for his mileage at the current tax reimbursement of .76/mile. (Livingston Decl., ¶ 11, and Ex. G attached to the Livingston Decl.)

The Plaintiff’s motion is **denied**.

Plaintiff shall submit to a second medical examination on September 11, 2026 at 2:30 p.m. at the offices of Dr. Kevin Milaekian, which are located at 7248 South Land Park Drive, Suite 116, Sacramento, CA, 95831.

Defendants are ordered to present Plaintiff with reimbursement (in the form of a check) for travel costs to and from Corning, CA at the rate of .76/mile, or \$174.80 to attend the examination, upon completion of same.

Defendants shall direct Dr. Mikaelian to prepare a written report and they must timely provide it to Plaintiff’s counsel pursuant to CCP § 2032.610(2)(b).

Defendants are ordered serve Plaintiffs with Notice of Entry of this Order electronically by close of

business on September 8, 2026.

Courtroom Clerk's Session

19. 1:30 PM CASE NUMBER: MSC21-00582
CASE NAME: WHITE VS SUTTER DELTA MEDICAL CENTER
ISSUE CONFERENCE ALL PARTIES SHALL APPEAR IN PERSON EXCEPT DR. WOO AND INSURANCE
REP B. RIETMAN WHO MAY APPEAR VIA ZOOM.

FILED BY:

TENTATIVE RULING:

Parties to appear.